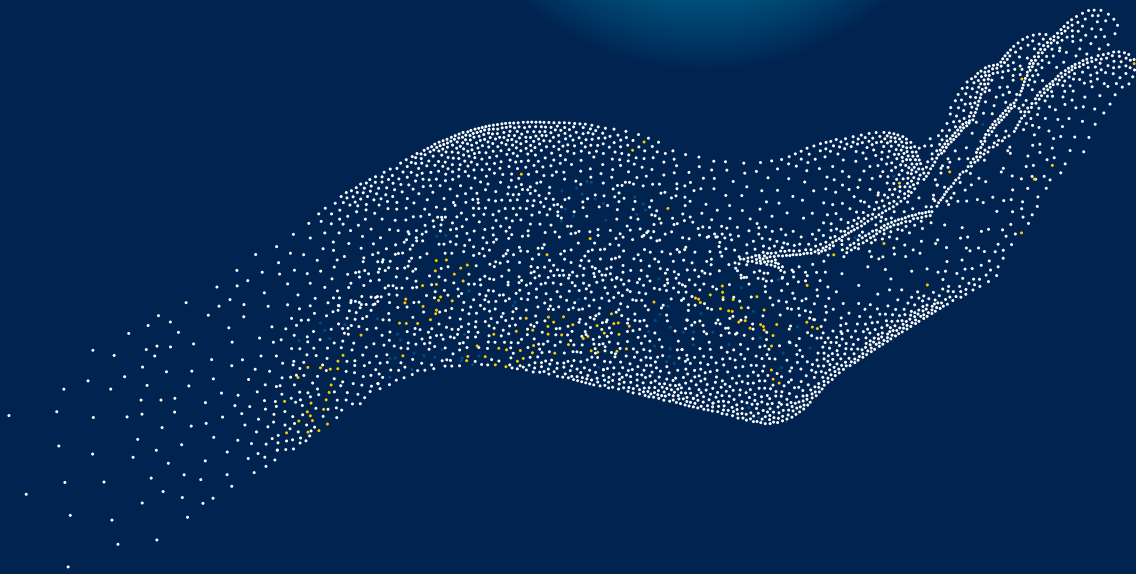




AI ESSENTIALS

FOR JUDGES

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Since 2013, UNESCO has been involved in the training of judicial actors as part of its Judges Initiative. In total, more than 36,000 judicial operators (judges, prosecutors, clerks, court officials, lawyers) from more than 160 countries have been engaged. In 2021, UNESCO continued this momentum by launching the AI & Rule of Law programme to meet a growing demand for capacity building and support on the challenges of technology in the judicial sector. UNESCO developed a Global Toolkit on AI and the Rule of Law for the Judiciary (also available in Arabic, French, and Spanish) that serves as a foundation for its training programme around the world.



Since wars begin in the minds of men and women, it is in the minds of men and women that the defenses of peace must be constructed

This document is designed to inform judges on most frequently asked questions about AI in the judicial context. The questions dealt with are of a general nature and are not intended to be exhaustive. The reader interested in this topic can refer to the Guidelines for the Use of AI in Courts and Tribunals published by UNESCO.

AI Essentials for Judges was prepared in response to the findings of the [survey](#) conducted by UNESCO in 2023 among judicial operators in 96 countries about their use of AI. This study found that 44% of legal professionals integrate AI into their work. However, only 9% of respondents have received training or guidelines from their institutions. Therefore, judicial operators called for specific support to which UNESCO responded by publishing its [Guidelines for the Use of AI in Courts and Tribunals](#). *AI Essentials for Judges* was also born from the qualitative interactions UNESCO had with hundreds of judicial operators through its trainings and events. These conversations highlighted the need to create a short document for the wider judicial community whose members are not experts in the field, but who are concerned and curious about the irruption of AI in the justice system.

The frequently asked questions detailed in this document are intended to inform judges, prosecutors, court staff, and lawyers about artificial intelligence, its uses and limits in the judicial context. This living document will be reviewed periodically to ensure its accuracy and relevance.

THE DOCUMENT CONSISTS OF SIX CORE AREAS:

1. Definitions (1-2)
2. Uses of AI in the judicial sector (3-7)
3. Use of AI by Judges (8-9)
4. Potential Benefits for Litigants (10)
5. Risks (11-15)
6. Preventive and Corrective Actions (16-17)

Definition



1. What is Artificial Intelligence (AI)?

Artificial intelligence is a technology that allows repetitive, and time-consuming tasks to be performed by programming series of instructions and operations. In other words, AI systems are computational systems that can process data and information in a way that resembles intelligent behaviour, and typically includes aspects of reasoning, learning, perception, prediction, planning or control.

2. What is generative AI (GenAI)?

Generative artificial intelligence has the particularity of producing content (text, images, video, computer code) from a large amount of data and upon instruction (called a 'prompt').

Development & Use of AI in the judicial sector



3. How can the courts guide the development and use of AI?

Judicial authorities can lead AI adoption by creating an AI strategy. First, they should map available court data, review how many documents are digitized, check IT infrastructure, and identify where AI could help streamline court processes. In other words, courts can start by focusing on the problems they want to solve. Then, they can choose to build their own AI systems or partner with trusted third parties—always ensuring full control over court data, tools, and their use in the judiciary. Additionally, courts can organize conversations with other legal professionals, bar associations, academics from different fields and the public to better inform its strategy.

4. What are the applications of AI in the judicial sector?

AI has a wide range of applications in the judicial sector, helping courts work more efficiently and effectively. Its main uses fall into three areas:

- **Administrative Support:** AI can automate routine tasks like sorting files, managing calendars, transcribing hearings, and translating documents—freeing up valuable time for judges and staff.
- **Document Analysis:** AI tools can quickly search for keywords, analyze patterns, summarize or translate documents, and cross-reference similar cases or arguments, making information easier to find and process.
- **Decision Support:** AI can help summarize facts, analyze data, review relevant caselaw, and even assist in drafting decisions, giving judges deeper insights while they remain in control of final rulings.

By handling repetitive or time-consuming work, AI allows judges and court personnel to focus on complex legal analysis and decision-making. Thoughtful use of AI can significantly improve the speed, reduce risks and costs and increase the quality of justice delivery, making courts potentially more efficient and accessible.

5. How can AI improve case management and reduce delays?

AI can significantly improve case management and help reduce delays in courts. By automating the handling of high-volume, routine cases—such as traffic violations or low-value disputes—AI systems can quickly process and standardize these matters. These applications can suggest decisions to judges based on the specifics of each case and relevant laws, streamlining the workflow and easing court congestion.

Importantly, this approach maintains judicial oversight by ensuring that parties can appeal to a human judge. This balance preserves human rights and strengthens public trust while enabling courts to resolve straightforward cases more efficiently and devote more time to complex legal issues.

6. How can courts and judges balance the use of AI with the rules of conduct and ethics?

Courts and judges can effectively balance the use of AI with judicial ethics by following the [UNESCO Guidelines on the Use of AI Systems in Courts and Tribunals](#):

- **Uphold Judicial Independence and Impartiality:** AI tools should always support, not undermine, core judicial values such as independence, impartiality, and equality, as outlined in the Bangalore Principles of Judicial Conduct.
- **Respect Ethical and Regulatory Standards:** The integration of AI must comply with established ethical guidelines, including those provided by UNESCO for courts and tribunals, ensuring a human rights driven and transparent use of technology.
- **Use AI as a Support Tool:** AI should assist with analysis and administrative tasks but must never replace a judge's judgment. The final decision in every case must rest with a human judge.
- **Safeguard Confidentiality and Data Protection:** Strict adherence to data protection laws is essential to protect the privacy and confidentiality of all court information handled by AI systems.

By following these steps, courts can move towards ensuring fairness, accountability, and public trust in the justice system.

7. How to train judges and judicial staff in the use of AI tools?

Continuing education programs, hands-on workshops, and online educational resources can help judges and court officials understand and use AI tools effectively. These sessions must take place at regular intervals to consolidate the knowledge and skills of each person and to promote the exchange of good practices.

UNESCO supports the capacity-building of judges across the world. As part of the Judges Initiative, several [MOOCs](#), a special toolkit on [freedom of expression](#) and [Guidelines on the protection of journalists](#) were published. Under its AI & the Rule of Law programme, UNESCO provides in-person and online trainings at the national and regional level for judges around the world based on its [Global toolkit on AI and the rule of law for the judiciary](#). Additionally, a [MOOC on AI & the Rule of Law](#) for is available free of charge. An advanced version will be published in early 2026.

Use of AI by judges



8. What steps should a judge take before using AI?

Before using AI—especially generative AI—judges should take several important steps to ensure responsible and effective use:

- **Check Institutional Policies:** Confirm with your court or ministry whether the use of specific AI tools is permitted. Understand if there are any restrictions or approvals required, whether the tools are court-provided or publicly available.
- **Review Ethical Assessments and Guidelines:** Determine if an ethical impact assessment has been conducted for the AI tool and whether any guidelines or protocols are in place for its use.
- **Understand the Tool:** Take time to learn how the AI works, including its features, limitations, and settings. Judges should also familiarize themselves with policies on data protection, storage, and access, particularly when handling sensitive case information.
- **Clarify Liability:** Identify rules regarding personal or professional responsibility if errors occur or if the tool is misused.
- **Invest in Ongoing Training:** Regular training is essential for staying informed about developments in AI technology and understanding its evolving risks and opportunities.

By following these steps, judges can use AI tools confidently while safeguarding ethical standards, legal requirements, and public trust. For more details on good practices, consult the [UNESCO Guidelines for the Use of AI in Courts and Tribunals](#).

9. What are good practices to adopt while using AI?

When using AI in the judicial sector, judges and court staff should adopt, for example, the following good practices:

- **Exercise Vigilance:** Remain attentive and cautious throughout the use of AI tools, ensuring that their integration upholds legal and ethical standards.
- **Safeguard Confidentiality:** Avoid sharing confidential or personal information with AI systems, especially generative AI, to protect the privacy of all parties involved.
- **Verify Outputs:** Always review and critically assess the results generated by AI to detect and correct potential errors or «hallucinations»—inaccuracies or fictitious information that AI tools may produce.
- **Ensure Transparency:** Inform all parties involved in a trial when AI has contributed to any aspect of case preparation or decision-making. Clearly indicate which sections of documents or judgments were drafted by AI.
- **Report Issues:** Promptly report any errors, inconsistencies, or problematic outcomes to help improve internal procedures and the responsible use of AI within the court system.

For further guidance on responsible AI use, refer to the official [Guidelines for the Use of AI in Courts and Tribunals](#).

Potential benefits for litigants



10. How can AI improve access to justice?

AI can greatly enhance access to justice by making legal information and services more understandable, affordable, and user-friendly. Key ways AI achieves this include:

- **Ensuring universal and meaningful connectivity:** access to the Internet and digital services at an affordable cost and when needed is a fundamental precondition remains true at the age of AI, where individuals can be kept away from the potential benefits of AI if they can't access the internet or devices.
- **Providing Clear Legal Guidance:** AI-powered tools—such as chatbots and interactive decision trees—can deliver easily understandable information about legal rights and court procedures, helping users navigate the justice system confidently.
- **Automating Simple Procedures:** Routine tasks, like filing standard documents or offering online mediation, can be handled by AI tools, reducing delays and lowering costs for litigants.
- **Simplifying Court Decisions:** AI can generate plain-language summaries of complex legal rulings, making court outcomes easier to understand for all parties involved.

AI is also especially valuable for supporting people with low literacy or language barriers. In this context, AI tools can:

- **Design Adapted Interfaces:** Simplify digital platforms to make them intuitive for all users.
- **Personalize Support:** Offer tailored guidance based on individual needs, at a fraction of traditional costs.
- **Enhance Communication:** Convert speech to text or vice versa, and translate content as needed, making the justice system more inclusive.

With proper safeguards, these technologies can make justice more accessible, equitable, and effective for everyone.

Risks

11. What are the potential consequences of AI on the confidentiality of court data and cybersecurity?



AI can strengthen court data security through advanced encryption and privacy-enhancing technologies. However, its use also introduces significant risks. A data leak could expose sensitive information about judges, litigants, and cases—potentially threatening personal safety and undermining trust in the justice system.

Beyond data privacy, judges must also safeguard their professional intellectual privacy. If AI systems profile individual judges' reasoning or preferences, this could threaten judicial independence by shaping or predicting their decisions. Such profiling may diminish the objectivity of judicial reasoning and expose confidential decision-making processes.

To address these risks, courts and judges should:

- **Strictly regulate access** to court data, manage storage conditions carefully, and control dissemination of information to third parties.
- **Be vigilant about what data is shared** with AI tools and service providers, especially those not developed or controlled by the judiciary.
- **Prioritize secure devices and connections:** Always use computers with updated systems and software, and connect only through secure, private internet networks. Avoid public Wi-Fi, such as those in hotels or public spaces, due to the risk of data interception.

By remaining cautious and implementing strict cybersecurity protocols, courts can harness the benefits of AI while protecting confidentiality, judicial independence, and the integrity of the justice system.

12. Can AI be used to predict court decisions and profile judges?

Some AI tools identify judges' names and establish their profiles based on past decisions to predict future decisions. Various firms use these tools to optimize their litigation strategy, anticipate and tailor arguments depending on the profile of the deciding judge.

When Judges issue decisions on sensitive cases, including drug trafficking, organized crime and terrorism, publishing their names can create a risk for their safety. Therefore, to reduce the risk of prediction, profiling and harm, courts may consider anonymising their decisions. This process can be based on the context and balance various rights and policies, such as access to information and transparency in judiciary processes. For example, some countries have banned the profiling of judges to preserve their independence (see, in France, Art. L111-13 of the Code of Judicial Organisation).

13. What are the ethical and human rights risks associated with the use of AI in the justice system?

The risks are multiple and include, but are not limited to, algorithmic biases, loss of privacy, and over-reliance on technology. The realisation of these risks can undermine the fairness and transparency of judicial decisions and undermine the independence of judges if AI is not used as a mere assistant but as a substitute for the judge. Preventing these risks require internal verification and reporting mechanisms, regular audits, and informing concerned individuals.

AI and generative AI systems can improve the protection of rights by facilitating judicial oversight and allowing individuals to defend their rights in court. However, these same systems can lead to potentially serious risks to the right to life, freedom of expression and association, private and family life, the right to a fair trial, the rights of the defence, and equality before the law. Human rights impact assessments should therefore be conducted before and after the deployment of AI systems.

For more information, read the [Toolkit on AI & the Rule of Law](#) and the [Guidelines for the Use of AI in Courts and Tribunals](#).

14. In the event of an AI hallucination, will the judge be able to detect it? How to deal with it?

The judge can detect a hallucination of AI by relying on his or her legal knowledge, laws and case law to compare the results of AI. As a matter of principle, AI should only be a tool to help with writing or research, and not a substitute for human reasoning and decision making. Therefore, outputs should always be verified, especially legal citations and jurisprudence.

15. Will AI replace human judges?

AI cannot—and should not—replace judges. While AI can efficiently process and organize information, it is fundamentally a probabilistic tool that relies on instructions and existing data, which may contain biases or errors. AI lacks the capacity for nuanced legal reasoning and judgment required to weigh facts, interpret the law, and deliver a reasoned decision.

The essential mission of a judge goes far beyond data analysis. Judges must carefully consider the arguments of all parties, assess the evidence, and ensure that justice is done in accordance with both the law and the unique circumstances of each case. Sentencing, especially in criminal matters, must be individualized and account for the specifics of each person and situation—tasks for which AI is unsuited.

Ultimately, while AI can support judges with research and administrative tasks, only human judges possess the independence, discernment, and ethical responsibility required to deliver justice.

Preventive and corrective actions



16. Does the integration of AI into the judicial system require the inclusion of bar associations?

Yes, integrating AI into the judicial system requires the active involvement of bar associations. Multi-stakeholder engagement is crucial for ensuring diverse perspectives and upholding the core values of justice. Bar associations play a key role in protecting the rights of litigants and ensuring the ethical and fair use of AI in legal proceedings.

Their participation helps guarantee that AI serves as a supportive tool—enhancing efficiency, transparency, and fairness—rather than undermining legal rights or professional standards. By involving bar associations, the judiciary can promote the responsible adoption and oversight of AI tools, fostering greater trust and legitimacy in the justice system.

17. What appeal mechanisms are available to litigants challenging an AI-based decision?

In line with the principle that a human should always be able to intervene in decision-making processes involving AI, litigants should be able to request and obtain a human review of AI-based decisions and have access to transparent appeal procedures. Courts should systematically provide for the possibility of human control of decisions and systems to limit risks to individual rights and freedoms.

In the European Union, for example, Article 22 of the GDPR (General Data Protection Regulation) enshrines the right of individuals to obtain an intervention from the controller in the event of an automated individual decision. Similarly, the EU AI Act (Art. 86) recognises that data subjects affected by decisions taken based on AI “shall have the right to obtain from the deployer clear and meaningful explanations of the role of the AI system in the decision-making procedure and the main elements of the decision taken”. This provision is applicable in the courts for AI tools classified as high-risk.

Additional resources



UN Reports

- UN General Assembly, Report of the Secretary General, [Human rights in the administration of justice](#) Report of the Secretary-General (August 2024)
- UN reports on AI & human rights
- OHCHR reports:
 - [Reparatory justice in the age of Artificial Intelligence](#), and
 - [Report of the Special Rapporteur on Independence of Judges and Lawyers](#) (2025), and her past reports

As a judge, if you wonder what Artificial Intelligence is, and why everybody is talking about this technology either as a “revolution” or a “threat” in the justice sector, this document is for you. No expertise is needed. We cover the basics, from definitions to insights into the use, the benefits and the risks of this technology.

The AI & the Rule of Law programme at UNESCO equips judges and legal professionals around the globe with the skills they need to uphold justice, the rule of law and human rights in the age of AI.

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